

25NWCV00357 25NWCV00357

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Case Number: 25NWCV00357 Hearing Date: August 27, 2026 Dept: P

EDNESHA D. SCOTT, ET AL. v.

AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 25NWCV00357

HEARING: 08/27/2026 @ 9:30 AM

#11

TENTATIVE ORDER

Defendant American Honda Motor Co., Inc.'s motion to tax costs is GRANTED IN PART and DENIED IN PART. The Court taxes \$72.75 in costs.

Moving party to give notice.

Defendant American Honda Motor Co., Inc. (Defendant) moves to tax costs.

Background

This is a lemon law action. On January 9, 2025, Plaintiffs Ednesha D. Scott and Yellordy M. Scott (Plaintiffs) filed a complaint against Defendant and Does 1 through 10 alleging three causes of action under the Song-Beverly Act: (1) breach of express warranty, (2) breach of implied warranty, and (3) section 1793.2.

On February 24, 2026, Plaintiffs filed a Notice of

Settlement of Entire Case indicating that the parties agreed to a conditional settlement.

On May 4, 2026, Plaintiffs filed a Memorandum of Costs.

Legal Standard

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc., § 1032, subd. (b).)

“ ‘In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable. [Citation.] Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.’” (Rozanova v. Uribe (2021) 68 Cal.App.5th 392, 400, internal quotations omitted.) “Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. [Citation.] However, because the right to costs is governed strictly by statute [citation] a court has no discretion to award costs not statutorily authorized.” (Ibid.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224.)

Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2).) “Allowable costs shall be reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c)(3).)

Under Civil Code section 1794, subdivision (d): “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

Discussion

Defendant moves to strike Plaintiffs' entire Memorandum of Costs or, alternatively, to tax costs in the amount of \$297.75.

Defendant first requests that the Court strike Plaintiffs' Memorandum of Costs in its entirety. This request is not supported by reasoned arguments or authorities, and the Court thus denies this request.

No. 2: Jury Fees

Plaintiff seeks \$150 in jury fees. Defendant argues that jury fees are not recoverable because no jury was ever convened in this matter.

Pursuant to Code of Civil Procedure section 631, subdivision (b), a party "shall pay a nonrefundable fee of one hundred fifty dollars (\$150)" if they seek a jury trial. "The fee...shall be due on or before the date scheduled for the initial case management conference in the action." (Code Civ. Proc., § 631, subd. (c); *Naser v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 576 [noting that a party paying the jury fee could not have known at the time of the initial case management conference two years earlier that a jury trial would be unnecessary.].) Because the initial case management conference occurs early in a lawsuit and the fees are nonrefundable, Plaintiffs' request for jury fees is warranted. (See Code Civ. Proc., § 631.3, subd. (c) ["The fee described in subdivision (b) of Section 631 shall be nonrefundable and is not subject to this section."].) The Court does not tax the jury fees.

No. 15:

Other Costs

Defendant moves to strike Plaintiffs' request for Other Costs. Specifically, \$75 for appearance attorneys for a Case Management Conference appearance and \$72.75 for fees related to providing courtesy copies.

In opposition, Plaintiffs concede that the Court should tax the costs related to providing courtesy copies. Therefore, the Court taxes \$72.75.

As noted by Defendant in reply, Plaintiffs do not address

the \$75 in costs for appearance attorneys for a Case Management Conference appearance. However, attorney's fees are expressly permitted as costs and costs incurred for appearing for a Case Management Conference are reasonably incurred in litigating an action. (See Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1794, subd. (d).) Therefore, the Court does not strike \$75 in appearance costs.

Accordingly, Defendant's motion to tax costs is GRANTED IN PART and DENIED IN PART. The Court taxes \$72.75 in costs.